

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO
Law and Motion Calendar
Honorable Nicole S. Healy
800 North Humboldt Street, San Mateo, CA 94401
Department 28, Courtroom I
Wednesday July 22, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message..
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

JULY 22, 2026 LAW AND MOTION CALENDAR
Judge NICOLE S. HEALY, DEPARTMENT 28

Case	Title / Nature of Case
02:00 PM LINE 1	
19-CIV-00851	NORMAN PICKER, JR, ET AL. VS. KATHERINE LOUDD, ET AL.
NORMAN PICKER KATHERINE LOUDD	CHRISTOPHER J. KELLY BRIAN A. BARNHORST

Plaintiffs' Motion for Relief After Judgment

TENTATIVE RULING:

The parties are reminded that exhibits must be properly bookmarked. That is, “electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 [“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”].)

The parties’ proposals and counter-proposals are too extensive for the court to address at this time. The parties are **ORDERED TO APPEAR** so that the court may specially-set a hearing on the motion.

02:00 PM **LINE 2**

23-CIV-04242

ZABALLA SQUARE INVESTMENTS L.P. VS. JOHN SHEPUTIS, ET AL.

ZABALLA SQUARE INVESTMENTS L.P.
JOHN SHEPUTIS

ROBERT R. CROSS
ADRIAN J. SAWYER

Cross-defendants John Sheputis and Sheputis DC Investments, LLC's Demurrer to Additional Cross-complaint

TENTATIVE RULING:

Additional Cross-Defendants John Sheputis and Sheputis DC Investments, LLC's Demurrer to each cause of action in the Additional Cross-complaint of George Cresson is **SUSTAINED with leave to amend** as to the first cause of action for fraud, second cause of action for breach of fiduciary duty, fourth cause of action for professional negligence, fifth cause of action for waste, and sixth cause of action for defamation, and **SUSTAINED without leave to amend** as to the third cause of action for conspiracy, pursuant to Code of Civil Procedure, section 430.10, subdivision (e).

A. Legal Standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).) A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

"[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Aubry, supra*, 2 Cal.4th at p. 967.) Leave to amend should not be granted where, in all probability, amendment would be futile. (*Foroudi, supra*, 57 Cal.App.5th at p. 1001.) The party seeking leave to amend has the burden of demonstrating the possibility that amendment can cure the legal defects of the pleading. (*A.J. Fistes, supra*, 38 Cal.App.5th at p. 687.)

B. Fraud

The elements of a cause of action for fraud are: (1) a misrepresentation, which can be a false representation, concealment, or nondisclosure of a material fact; (2) knowledge of falsity or scienter; (3) intent to defraud or induce reliance; (4) actual and justifiable reliance by the

plaintiff; and (5) resulting damages. (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258.) Each of the elements must be pled with specificity. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631.)

Cross-defendants demur on the grounds that the Additional Cross-complaint does not allege when false statements were made, by what means, or the nexus between any misrepresentation and harm to Cross-complainant Cresson. The Additional Cross-complaint does not allege with the requisite specificity that the statements were false when made. The nexus between misrepresentations and damages is also insufficiently pled.

The Additional Cross-complainant alleges that “Cross-Defendants made false statements, concealed facts, and failed to disclose other facts to CRESSON.” (Additional Cross-complaint, ¶ 34.) However, the pleading does not contain allegations regarding when the statements were made, or by what means, or what facts were purportedly omitted. For example, Cresson alleges that: “SHEPUTIS DC INVESTMENTS and SHEPUTIS promised to acknowledge that a \$975,000 investment made by SHEPUTIS DC INVESTMENTS would constitute payment for control of DANVILLE PROPERTY [*sic*] and that he would take any and all steps would to make clear that ZABALLA was not liable for any part of the \$975,000 including the step marking a note payable by ZABALLA in the amount of \$975,000 (which note was in SHEPUTIS’ possession but never funded to ZABALLA) ‘superseded and replaced’ and returning the original of the note to CRESSON.” (*Id.*, ¶ 4.) Cresson does not allege to whom the purported promise was allegedly made, or when, or how.

The allegations are particularly murky as to when any false representations were allegedly made, and when Cresson learned that they were allegedly untruthful. Cresson further does not make clear what the “true facts” were that Sheputis purportedly concealed, nor the specific promises made, nor how, when, and to whom. (See Additional Cross-complaint, ¶¶ 9-10.) Counsel’s efforts to expand the allegations by offering new facts and explanations in his opposition to the demurrer is inappropriate and the court has disregarded those arguments.

The demurrer is accordingly SUSTAINED as to this cause of action with leave to amend.

The court further questions whether the claims are time-barred. Cresson does not adequately explain what appears to be a long delay between the events concerning the alleged fraud as to the Danville Property and the \$975,000 note (all of which appear to have occurred some time before 2015), and the fact that he waited until now to bring this cross-complaint. Cresson contends that he learned during Sheputis’s deposition in the underlying action that Sheputis never intended to honor any agreements regarding the Danville Property or the note. (See Additional Cross-complaint, ¶¶ 9-10.)

However, it also appears that information regarding Sheputis that Cresson claims was concealed has been publicly available for some time. That is, Cresson alleges that he recently learned that Sheputis falsely claimed to have been exonerated in a lawsuit brought in San Mateo County Superior Court, CIV480548. (Additional Cross-complaint, ¶¶ 20-23, 27-28.) The court’s docket indicates that judgment was entered against Sheputis on December 14, 2015 and Cresson

does not allege when he purportedly learned that Sheputis's claims regarding that lawsuit were false.

This case is set for trial as to the underlying action on October 26, 2026. The parties are to appear at a case management conference on August 19, 2026 to discuss the effect of the Additional Cross-complaint on the trial date.

C. Breach of Fiduciary Duty

The elements of a cause of action for breach of fiduciary duty are: (1) the existence of a fiduciary duty; (2) breach of that duty; and (3) damage proximately caused by the breach. The absence of any one of these elements is fatal to the claim. (See CACI No. 4100 (2026); *Williamson v. Brooks* (2017) 7 Cal. App.5th 1294, 1300; *Gutierrez v. Girardi* (2011) 194 Cal.App.4th 925, 932.)

Cross-defendants assert that Cresson fails to allege facts showing that they owed him a fiduciary duty. Cresson argues that he has done so by pleading the existence of a joint venture and the ultimate facts required to support the cause of action, citing paragraphs 2-3 and 39-42 of the Additional Cross-Complaint. (Opp., at p. 11:17-18.) The Additional Cross-complaint does not allege a joint venture at the cited paragraphs or anywhere else, and does not otherwise allege facts showing that he was owed a fiduciary duty.

The demurrer is accordingly SUSTAINED as to this cause of action with leave to amend.

D. Conspiracy

Cross-defendants argue that the demurrer should be sustained without leave to amend as to this cause of action because conspiracy is not a cause of action, but merely a theory of liability. "Conspiracy is not a cause of action, but a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration. [Citation.]" (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd* (1994) 7 Cal.4th 503, 510-511.) Cross-complainant does not address this cause of action in the Opposition.

The demurrer is therefore SUSTAINED without leave to amend as to this cause of action.

E. Professional Negligence

The elements of a cause of action for professional negligence are (1) a professional having a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise, (2) breach of that duty, (3) a proximate causal connection must exist between the negligent conduct and the resulting injury, and (4) actual loss or damage resulting from the professional's negligence. (*Hasso v. Hapke* (2014) 227 Cal.App.4th 107.)

Sheputis is alleged to be a real estate developer, with no facts supporting a professional relationship of the kind supporting the cause of action, or of a duty of care.

The demurrer is accordingly SUSTAINED as to this cause of action with leave to amend.

F. Waste

A cause of action for waste must be supported by allegations of acts which injuriously affect the market value of the property at issue, since evidence of those actions is required to prove the claim. (See *Rowe v. Wells Fargo Realty Services, Inc.* (1985) 166 Cal. App. 3d 310, 319.) Cross-defendants argue that this cause of action is subject to demurrer because Cresson does not plead the facts that injuriously affected the market value of the property and does not plead facts showing standing. The Additional Cross-complaint alleges that Cross-defendants “mismanaged and caused waste to the DANVILLE PROPERTY in ways that harmed CRESSON.” (Additional Cross-Complaint, ¶ 30.) These allegations are conclusory. Cresson argues that he can “add specific allegations of the Joint Venture to develop the Danville Property, Sheputis’s failure to pay real estate taxes and other financial obligations fundamental and assumed to be undertaken as part and parcel to real property ownership.”

The demurrer is accordingly SUSTAINED as to this cause of action with leave to amend.

G. Defamation

Cross-defendants demur on the grounds that the Additional Cross-complaint does not allege the substance of any defamatory statements. Cresson concedes that he has not sufficiently pled a cause of action for defamation, asserting that “Cresson can amend his defamation cause of action to satisfy the pleading requirements identified by Sheputis” by alleging that “Sheputis undertook a campaign to ostracize Cresson and his wife by communicating to mutual friends that Cresson had refused to repay debts allegedly owed to Sheputis.” (Opp. at p. 13:17-19.)

The demurrer is accordingly SUSTAINED as to this cause of action with leave to amend.

Cresson may file a First Amended Additional Cross-Complaint within ten (10) days of notice of entry of the formal order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, additional cross-defendants’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

JULY 22, 2026 LAW AND MOTION CALENDAR
Judge NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 3**

24-CIV-01937

ONELINK, LLC VS. JOHN B. STONE, JR, ET AL.

ONELINK, LLC
JOHN B. STONE

CATHERINE DELCIN
DAVID H. SCHWARTZ

Plaintiff's Motion to be Relieved as Counsel

TENTATIVE RULING:

OneLink, LLC and Catherine Delcin are **ORDERED TO APPEAR**.

The unopposed motion of Catherine Delcin and Delcin Consulting Group to be relieved as counsel of record for plaintiff Onelink, LLC is **DENIED without prejudice**. While the Delcin declaration states that plaintiff's service address was confirmed as current, it does not indicate that this was the electronic service address. Paragraph 3(a) of the declaration is blank. In addition, the proof of service indicates the moving papers were served by email on March 3, 2026, the same date they were filed. However, the hearing date on the notice of motion was changed from July 8, 2026, to July 22, 2026, at the time of filing. As a result, it is unclear whether the copy of the notice served was the original or amended version. To date, the court's record does not reflect the filing or service of an amended notice.

If, however, counsel appears and provides proof that plaintiff's electronic address is current and that all parties had notice of the correct hearing date, the motion will be **GRANTED**. The Delcin declaration states grounds for withdrawal, no trial date has been set, and there are no other pending hearings.

OneLink is advised that if the court grants Ms. Delcin's motion to withdraw as counsel, it will have thirty (30) days to retain new counsel.

02:00 PM **LINE 4**

24-CIV-05754

CHRISTINE A. HALL, ET AL. VS. SHUJUAN WU, ET AL.

CHRISTINE A. HALL
SHUJUAN WU

JEFFREY R. WINDSOR
RUOCHEN LIU

Defendants Shujuan Wu and Huanhua Li's Motion for Leave to File an Amended Answer to Plaintiffs' Complaint

TENTATIVE RULING:

Defendants Shujuan Wu's and Huanhu Li's unopposed motion for leave to file an amended answer to the complaint filed by plaintiffs Christine A. and Francis C. Hall on September 16, 2024, is **GRANTED**.

Defendants shall file their amended answer within ten (10) days of notice of entry of the formal order.

A. Background

Plaintiffs brought their complaint on September 16, 2024. Defendants filed their answer on November 18, 2024, and a cross-complaint on November 25, 2024.

Defendants bring the instant motion to amend their answer pursuant to Code of Civil Procedure, section 473 on the basis of allegedly newly discovered facts and evidence which defendants contend impact the viability of plaintiff's title as well as generally in the interests of justice. Defendants submit a copy of the proposed amended answer appended to the instant motion as Exhibit 1. The motion is unopposed.

In future, the court directs the parties to submit any proposed amended pleading by way of a redlined version of the proposed revisions, rather than as a narrative included in a declaration of counsel.

B. Legal Standard

Code of Civil Procedure, section 473 permits the trial court in its discretion to allow amendments to pleadings in the furtherance of justice. "Ordinarily, courts should 'exercise liberality' in permitting amendments at any stage of the proceeding. [Citations omitted.] In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense. (Citations omitted)." (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) Furthermore, "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576, see also *Eng v. Brown* (2018) 21 Cal.App.5th 675, 700.) "The rule is that courts will be

liberal in allowing an amendment to a pleading when it does not seriously impair the rights of the opposite party, and particularly an amendment to an answer. A defendant can generally set up as many defenses as he may have.” (*Gould v. Stafford* (1894) 101 Cal. 32, 34.)

C. Discussion

Here, counsel’s declaration states that defendants’ previous lawyer ran out of time when preparing the answer and did not have sufficient knowledge of all the facts. (Declaration of Ruochen Liu, filed on March 12, 2026, ¶ 2.) “Defendants’ new counsel discovered the information needed to fulfill the emptiness of the prior answer” and “defendants would be severely prejudiced and suffer irreparable harm” were the court not to allow the amendment. (*Id.*, ¶¶ 3-4.) Plaintiffs have not opposed the motion and asserted that they would be prejudiced by amendment. Given the California courts long-standing policy of liberality regarding such motions, defendants’ motion to amend the answer is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

24-CIV-08329

JONATHAN YUN VS. TOYOTA MOTOR SALES, U.S.A., INC.

JONATHAN YUN
TOYOTA MOTOR SALES, U.S.A., INC.

ELLIOT CONN
SEAN D. BEATTY

Plaintiff's Motion to Compel Toyota Motor Sales, U.S.A., INC's Further Responses to Requests for Production of Documents

TENTATIVE RULING:

Plaintiff Jonathan Yun's Motion to Compel Further Responses to Requests for Production of Documents (RFP) from defendant Toyota Motor Sales, U.S.A., Inc. (Toyota) is **GRANTED**.

Plaintiff seeks to compel further responses to RFPs Nos. 1-5, 7-9, 20, 21, 25-28, and 31-33. A propounding party may move to compel further responses if the propounding party deems: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; and/or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) If good cause is shown by the moving party, then the burden is on the responding party to justify any objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

A. Plaintiff has Established Good Cause for Ordering Further Responses as to RFPs Nos. 1-5, 7-9, 20 and 21

These requests pertain to documents concerning discovery of evidence of the pre-sale damage to the subject vehicle and Toyota's knowledge of the damage.

For RFPs Nos. 1, 2, 5, 8, 9 and 20, Toyota's responses are not code-compliant. Toyota claims that it agreed to produce documents in part subject to its objections, but the way Toyota's responses are written do not support this claim. By stating that it will produce documents in part and then specifying the certain documents it will produce, it leaves open whether there may be other responsive, non-privileged documents. Toyota is ordered to provide code-compliant responses to these requests. (See Code Civ. Proc., § 2031.220.)

Similarly, for RFPs Nos. 3, 4, 7 and 21, Toyota's responses also are not code-compliant. Toyota appears to be claiming an inability to comply with these requests, but it fails to sufficiently state the reason regarding its inability to comply as required under Code of Civil Procedure, section 2031.230.

The Motion is GRANTED, and Toyota is to provide supplemental, code-compliant responses to these RFP. Toyota already provided a privilege log for these RFPs, and plaintiff is not challenging the privilege objection.

B. Plaintiff has Established Good Cause for Ordering Further Responses as to RFPs Nos. 25, 26, and 31-33

These RFPs seek Toyota's relevant policy documents.

Plaintiff establishes good cause to justify these RFPs. Plaintiff also shows that Toyota agreed to produce these documents at the IDC. (Conn Decl., exh. K.)

Toyota responded only with objections to these RFPs. Toyota argues that the Motion is moot because it provided supplemental responses to these RFP after the filing of this Motion. (Guillot Decl., ¶ 20, and exh. E.) However, Toyota's supplemental responses continue to assert the same objections challenged by plaintiff in this Motion. As such, the court agrees with plaintiff that this Motion is not moot. (See *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 255-256 [trial court did not err in ruling on motion to compel further responses to discovery despite county supplementing its responses while the discovery motions were pending].)

Toyota fails to address any of its objections in opposition, and therefore it fails to substantiate these objections.

The Motion is therefore GRANTED.

C. Plaintiff has Established Good Cause for Ordering Further Responses as to RFPs Nos. 27 and 28

These requests seek documents regarding Toyota's Pre-Litigation Evaluation.

Plaintiff once again establishes good cause for these documents. Toyota objected to these requests. Toyota claims that RFP No. 27 is overbroad because it requires a legal analysis of every Federal and California warranty law to determine which of them requires repurchase and replacement. This argument is without merit as it is limited only to the subject vehicle. Further, Toyota argues that these RFPs seek legal conclusions such that it properly objected based on privilege, yet it also claims that no responsive documents ever existed even though it fails to state so in its responses. The court agrees with plaintiff that Toyota's responses are evasive. Toyota is to provide supplemental, code-compliant responses. If Toyota is continuing to rely on privileges to object to these RFP, then it is ordered to provide a privilege log for any documents withheld based on these privileges.

D. Toyota's Request for Monetary Sanctions is Denied

Because the court grants Plaintiff's Motion, Toyota's Request for Monetary Sanctions is DENIED.

E. Supplemental Responses

Toyota is to provide supplemental responses and produce any responsive documents within twenty days of service of written notice of entry of order by plaintiff.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 6**

24-CIV-08329

JONATHAN YUN VS. TOYOTA MOTOR SALES, U.S.A., INC.

JONATHAN YUN
TOYOTA MOTOR SALES, U.S.A., INC.

ELLIOT CONN
SEAN D. BEATTY

Plaintiff's Motion to Compel Toyota Motor Sales, U.S.A., Inc.'s Further Responses to Plaintiff's First Set of Special Interrogatories

TENTATIVE RULING:

Plaintiff Jonathan Yun's "Motion to Compel Toyota Motor Sales U.S.A., Inc.'s Further Responses to Plaintiff's First Set of Special Interrogatories, Nos. 15, 21-24," filed on February 6, 2026, is **GRANTED**.

Toyota Motor Sales U.S.A., Inc.'s request for monetary sanctions against plaintiff is **DENIED**.

As to Special Interrogatory Nos. 15 and 22-24 (which ask: "What are YOUR policies for repurchasing vehicles in accordance with the SONG-BEVERLY ACT"; "What are your policies regarding YOUR AUTHORIZED DEALERSHIPS selling vehicles that have sustained collision damage as 'new'?" and "What are YOUR policies regarding disclosing collision damage and body repairs on vehicles that have not been registered?" and "What are YOUR policies for repurchasing vehicles that have sustained pre-sale collision damage that are sold as 'new'?"), the Motion is **GRANTED-in-part**.

In response to each of these interrogatories, defendant asserts a number of objections, including privilege and work product protection. Toyota's response to Interrogatory No. 15 consists of a terse response, followed by several objections. Defendant's responses to Interrogatory Nos. 22-24 consist solely of objections.

In its Opposition papers, however, Toyota argues that it has already produced documents that contain information responsive to these interrogatories. Toyota appears to conflate producing documents with serving a proper interrogatory response. Toyota's Opposition argues that on February 12, 2026, it produced "supplemental confidential documents related to [Tyota's] policies and procedures for Lemon Law case management handling process flow chart and its warranty policy and procedures manual, subject to a stipulated protective order." (See Toyota's Separate Statement; Kriston Guillot Decl., ¶¶ 19-23.) Toyota's Opposition further explains that it needed to await entry of a Stipulated Protective Order before it could produce the above-referenced documents, and that it therefore did not produce the above-referenced "policy" documents until February 12, 2026. Given its document production, Toyota argues that no further response to these interrogatories is necessary.

Toyota contends that

22. On June 2, 2026, before drafting this opposition, defense counsel attempted to confer with plaintiff counsel on whether Plaintiff intended to maintain the motions to compel notwithstanding receiving further responses and the production. But Plaintiff counsel has not responded or withdrawn the motions to compel ...

23. Substantively, [Toyota] has produced all documents in its possession related to the subject vehicle, its distribution and transportation, relevant policies, investigations, and the service visits.

(June 4, 2026 Kriston Guillot Decl., ¶¶ 22-23.)

Toyota's responses to Special Interrogatories Nos. 15 and 22-24 are incomplete. Because Toyota has opted to produce documents containing responsive information pursuant to Code of Civil Procedure, section 2030.230, its interrogatory responses must reference Section 2030.230 and identify the documents with specificity, generally by Bates number. Section 2030.230, states, in pertinent part:

If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. ***This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained*** ...

(Code Civ. Proc., § 2030.230, emphasis added.)

Toyota's briefing suggests that the parties agreed that a document production would render further responses to these interrogatories moot or unnecessary, but defendant has not clearly identified any such agreement.

Within fifteen (15) days of notice of entry of this Order, Toyota shall serve further verified, code-compliant responses to Special Interrogatories Nos. 15 and 22-24.

As to Special Interrogatory No. 21 (stating: "IDENTIFY all transit companies that transported the SUBJECT VEHICLE"), the Motion is **GRANTED**. Toyota's response consists solely of objections based on attorney-client privilege, work product/consulting expert privilege/protection, and relevance. Toyota also argues that Special Interrogatory No. 14 asked Toyota to "IDENTIFY the transit company that delivered the SUBJECT VEHICLE to the selling

dealership,” and that in response to No. 14, Toyota directed plaintiff to documents that it produced pursuant to Section 2030.230.

Toyota’s response to Special Interrogatory No. 21 is incomplete. This interrogatory asks Toyota to identify “all transit companies that transported the SUBJECT VEHICLE,” which is broader than Special Interrogatory No. 14. Further, as explained above, if Toyota intends to respond to Special Interrogatory No. 21 by producing documents pursuant to Section 2030.230, its response must reference that code section, and identify the produced documents by Bates number.

Within fifteen (15) days of notice of entry of this Order, Toyota shall serve a further verified, code-compliant response to Special Interrogatory No. 21.

Because plaintiff’s Motion is being granted, Toyota’s request for monetary sanctions against plaintiff is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 7**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Second Amended Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions Set 5

TENTATIVE RULING:

Plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

In its discretion, the court will consider the motion, and the reply, each of which was filed a day late. (Code Civ. Proc., § 1005, subd. (b).) Defendant waived objections to the tardiness of the motion by timely filing an opposition. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929 [“It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion.”].) Plaintiff is admonished to comply with the California Rules of Court.

The hearing of plaintiff Kevin Ramos' *Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions Set 5* (Motion) is **CONTINUED to August 12, 2026 at 2:00 p.m.**

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered injury and damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for “Premises Liability/Negligent Security,” is pled solely against SamTrans.

Defendant responded to plaintiff's Requests for Admission Set #5 on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of the instant “Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions [sic] Set 5” (Motion) on January 8, 2026. Plaintiff filed an amended version of that initial motion on January 12, 2026. However, the court *sua sponte* ordered the motion concerning the Requests for Admission (RFAs) Set No. 5 off-calendar, and scheduled an IDC instead. (Order, January 16,

2026.) A pdf of a motion directed to compelling further responses to the RFA Set No. 5, a declaration, and a separate statement were filed on March 11, 2026. A first amended version of that pdf was filed on March 25, 2026, and then the instant Motion, which includes a declaration and separate statement was filed on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The court addressed the initial version of the Motion at an IDC. (Minute Order, February 26, 2026.) There, the Commissioner found that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, at pp. 1-2.) The Commissioner noted that, *inter alia*, "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (*id.*, at p. 2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon Plaintiff's earlier motion to compel further responses to his Request for Production (RFP), Set One. (*Id.*, at p. 3; see Minute Order, December 17, 2025.) Accordingly, the Commissioner noted that Plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, February 26, 2026, at p. 3.)

Plaintiff brings the instant Motion seeking to compel defendant to respond further to all 52 RFAs in Set No. 5.

B. The Court Lacks Sufficient Evidence to Rule Upon the Motion

Defendant argues, in part, that "Plaintiff submitted a declaration for additional discovery with this set of discovery," but that the declaration fails to comply with statutory requirements, including those in Code of Civil Procedure, section 2033.040. (Opp., at pp. 4:27-6:5.) The Declaration of Danielle K. Lewis in support of defendant's Opposition states that a copy of plaintiff's RFAs Set No. 5 is attached as Exhibit C. (Lewis Decl., ¶ 5.) However, defendant failed to attached Exhibit C — or any of the other exhibits referenced — to the Lewis Declaration. Thus, plaintiff's declaration for additional discovery is not before the court.

In his Reply, plaintiff does not address the issue, instead arguing that it is simple to respond to an RFA with a single word and a signature, while each of defendant's objections runs about 100 words.

Plaintiff has submitted as an exhibit to the Motion his "post-February 26 2026 informal discovery conference memo & briefing," which includes a "Declaration for Additional Discovery" regarding his special interrogatories, apparently Set 13. (Motion, exh. 47, at pp. 30-

31.) However, plaintiff has not submitted a copy of a declaration as to RFAs Set No. 5. (Code Civ. Proc., §§ 2033.040, 2033.050.)

The number of RFAs propounded by plaintiff and the sufficiency of his declaration justifying that number are relevant to the court's disposition of the Motion. Neither party has submitted evidence supporting their arguments on these issues.

The court therefore orders as follows:

- The hearing of this motion is continued to August 12, 2026 at 2:00 p.m.
 - No later than July 29, 2026, defendant shall file a supplemental declaration with the exhibits inadvertently omitted from its previous supporting declaration, along with any declaratory statements or exhibits evidencing the total number of requests for admission served by plaintiff in this matter. Defendant may concurrently file a supplemental opposition brief, not to exceed ten pages in length, addressing the totality of the requests for admission propounded by plaintiff upon defendant in this matter, and the sufficiency of plaintiff's declaration justifying additional discovery as to his requests for admission.
 - No later than August 5, 2026, plaintiff may likewise file a supplemental reply brief not to exceed ten pages, and a supplemental declaration addressing those same issues.
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02:00 PM **LINE 8**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Third Amended Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 12

TENTATIVE RULING:

Plaintiff Kevin Ramos has moved to compel further responses from defendant San Mateo County Transit District to Plaintiff's Special Interrogatories, Set No. 12 (SROGs).

Plaintiff's Third Amended Motion to Compel Further Responses to SROGs Set No. 12 is **CONTINUED** to August 12, 2026 at 2:00 p.m.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered injury and damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Plaintiff served his SROGs Set No. 12 on defendant on November 18, 2026, along with his SROGs Set No. 13 and Requests for Admission Set No. 5. Defendant responded to all three sets of discovery on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff initially filed a motion to compel further responses on all three sets of discovery to January 8, 2026. However, the Court *sua sponte* ordered the motion off-calendar and scheduled an IDC instead. (Order, January 16, 2026.) The parties did not resolve the discovery dispute at the IDC and Plaintiff filed a motion to compel on March 11, 2026. Plaintiff filed a "First Amended" and Second Amended" version of the motion on March 26, 2026, and a "Third Amended" version on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The Court scheduled an IDC hearing for plaintiff's SROGs Set No. 13 and RFAs Set No. 5 for February 26, 2026, and a hearing for SROGs Set No. 12 and plaintiff's Form Interrogatories Set No. 2, on March 16, 2026. However, the discussions at the February 26, 2026 hearing

covered all four motions and the later hearing was vacated. (Minute Order, February 26, 2026.) There, the Commissioner found that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, at pp.1-2.) The Commissioner noted that, *inter alia*, "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (*id.*, at p. 2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon Plaintiff's earlier motion to compel further responses to his Request for Production ("RFP"), Set One. (*Id.*, at p. 3; see Minute Order, December 17, 2025.) Accordingly, the Commissioner noted that Plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, February 26, 2026, at p. 3.)

Plaintiff disputes the Commissioner's characterization that plaintiff's discovery requests were related solely to investigating how defendant performed a diligent search and reasonable inquiry in its response to his RFP Set No. 1. (Ramos Decl., ¶ 10.) As to this motion, each of the 66 special interrogatories to which plaintiff seeks further responses are aimed at defendant's efforts to respond to plaintiff's RFP Set No. 1. Plaintiff himself acknowledges this: "PLAINTIFF's special interrogatories generally span inquiries about DEFENDANT's efforts to locate & produce the records requested in PLAINTIFF's Request for Production Set #1." (MPA, at p. 6:11-13.)

Plaintiff brings the instant Motion seeking to compel defendant to respond further to the 66 outstanding special interrogatories of the 68 special interrogatories in SROGs Set No. 12.

B. The Court Lacks Sufficient Evidence to Rule Upon the Motion

Defendant argues that the 68 special interrogatories in SROGs Set No. 12 alone are nearly double the limit of 35 for which no supporting declaration is needed justifying the requests is needed, and that plaintiff has served over 360 special interrogatories on defendant in this matter. (Opp., at p. 1:17-28.) Defendant argues, in part, that plaintiff's declaration justifying additional interrogatories fails to comply with the requirements of Code of Civil Procedure, section 2030.050, subdivision (b). Defendant's supporting declaration states that a copy of plaintiff's SROGs Set No. 12 is attached as Exhibit A to the Declaration of Danielle Lewis. (Lewis Decl., ¶ 4.) However, defendant failed to attached Exhibit A – and all of its other exhibits – to that declaration.

Plaintiff does not directly address the issue of his supporting declaration but disputes defendant's claim that he has propounded over 360 special interrogatories. Plaintiff claims he only propounded 26 interrogatories prior to serving SROGs Set No. 12, which includes 68 special interrogatories. However, plaintiff acknowledges that he served SROGs Sets Nos. 13 and 14 – which include 31 and 4 special interrogatories, respectively – concurrently with SROGs Set No. 12. This court heard plaintiff's motion to compel further responses to the four interrogatories in SROGs Set No. 14 on July 15, 2026, and Plaintiff has acknowledged in his reply here that he is not seeking to compel further answers to SROGs No. 13. Plaintiff did not address any special interrogatories served after SROGs Sets Nos. 12-14.

Among plaintiff's exhibits is a declaration justifying additional discovery for SROGs Set No. 13. (Ramos Decl., exh. 47, at pp. 31-32 [the page numbers include plaintiff's notice, MPA, declaration, exhibits, and separate statement, all filed as one PDF].) While the language in the declaration in support of SROGs Set No. 13 appears to match that described in defendant's opposition brief regarding SROGs Set No. 12, the court cannot accept allegations made in the opposition brief as evidence, which must be supported by a sworn declaration or evidence submitted therewith.

The number of interrogatories propounded by plaintiff and the sufficiency of his declaration justifying additional discovery relevant to this motion. Neither party has properly submitted evidence supporting their arguments on these issues.

The court therefore orders as follows:

- The hearing of this motion is continued to August 12, 2026 at 2:00 p.m.
 - No later than July 29, 2026, defendant shall file a supplemental declaration with the exhibits inadvertently omitted from its previous supporting declaration, along with any declaratory statements or exhibits evidencing the number of special interrogatories served by plaintiff in this matter. Defendant may concurrently file a supplemental opposition brief, not to exceed ten pages in length, addressing the sufficiency of plaintiff's SROGs Set No. 12 declaration justifying additional discovery and the totality of special interrogatories propounded by plaintiff on defendant in this matter.
 - No later than August 5, 2026, plaintiff may likewise file a supplemental reply brief not to exceed ten pages and a supplemental declaration addressing those same issues.
-

02:00 PM **LINE 9**

25-CIV-04047

EDAS GILBERTO ISLAULA GARCIA VS. SILICON VALLEY LOGISTICS, LLC

EDAS GILBERTO ISLAULA GARCIA
SILICON VALLEY LOGISTICS, LLC

KANE MOON
TIM L. JOHNSON

Plaintiff's Motion for Preliminary Approval of Class and Representative Action Settlement

TENTATIVE RULING:

Plaintiff Edas Gilberto Isaula Garcia's Motion for Preliminary Approval of Class Action and PAGA Settlement is **GRANTED**. Plaintiff's counsel is **ORDERED TO APPEAR** to discuss a final approval hearing date.

The parties have agreed to a settlement in the amount of \$150,000 of which the parties estimate the Net Settlement Amount to be \$57,000. The Settlement allocates \$15,000 to resolve the PAGA claims and provides for a payment of 75% of that amount, that is, \$9,750 to the California Labor and Workforce Development. The remaining \$5,250 will be distributed among the aggrieved employees. The Settlement provides for an estimated payment of \$178.13 to each of the estimated 320 class members and \$20.67 to each aggrieved employee.

In ruling on class action and PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [a "trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 ["The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement."]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

Review of a proposed class action settlement typically involves a two-step process: preliminary approval and a subsequent final approval hearing. (*Cellphone Termination Fee Cases* (2009) 180 Cal.App.4th 1110, 1118; Cal. Rules of Court, rule 3.769; Code. Civ. Proc., § 581, subd. (k).)

Precertification settlements in class actions should be scrutinized carefully. (*Cho v. Seagate Technology Holdings, Inc.* (2009) 177 Cal.App.4th 734, 743 (*Cho*).) Precertification settlements are routinely approved where they are found fair, adequate and reasonable. (*Ibid.*; see also *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 240 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) "Due regard," ... "should be given to what is otherwise a private consensual agreement between the parties. The inquiry "must be limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between,

the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” [Citation.] . . .” (7–Eleven Owners for Fair Franchising v. Southland Corp. (2000) 85 Cal.App.4th 1135, 1145, quoting *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802 (*Dunk*).)

The test is not whether the maximum amount has been secured, but whether the settlement is reasonable under all circumstances. For example, a trial court does not abuse its discretion in approving a settlement when it found that the settlement was achieved at arm’s length negotiation, including review of the mediator’s declaration; the fact the case was vigorously litigated; plaintiff was represented by experienced counsel; the number of class members who objected or opted out was very small; and plaintiff faced considerable risk in proceeding to trial. (*Cho, supra*, 177 Cal.App.4th at p. 745.)

The trial court possesses a broad discretion to determine the fairness of the settlement; a discretion exercised through the application of a handful of identified criteria. Both the federal circuit courts and our Court of Appeal have adopted a mix of relevant considerations, including “[1] the strength of plaintiffs’ case, [2] the risk, expense, complexity and likely duration of further litigation, [3] the risk of maintaining class action status through trial, [4] the amount offered in settlement, [5] the extent of discovery completed and the stage of the proceedings, [6] the experience and views of counsel, ... and [7] the reaction of the class members to the proposed settlement.” (*Dunk, supra*, 48 Cal.App.4th at p. 1801.) The list of factors is not exhaustive and “should be tailored to each case.” (*Ibid.*) *Dunk* states that, “a presumption of fairness exists where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Ibid.*)

The court finds that the requirements for preliminary approval have been met.

The Settlement is preliminarily fair and reasonable. While the court places reliance on counsel’s opinion, the court

must also receive and consider enough information about the nature and magnitude of the claims being settled, as well as the impediments to recovery, to make an independent assessment of the reasonableness of the terms to which the parties have agreed. We do not suggest that the court should attempt to decide the merits of the case or to substitute its evaluation of the most appropriate settlement for that of the attorneys. However, as the court does when it approves a settlement as in good faith under Code of Civil Procedure section 877.6, the court must at least satisfy itself that the class settlement is within the ‘ballpark’ of reasonableness. (See *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499–500, 213 Cal.Rptr. 256, 698 P.2d 159.) This the Court cannot do if it is not provided with basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise.

(*Kullar, supra*, 168 Cal.App.4th at p. 133.)

In this case, the memorandum of points and authorities and declaration of Kane Moon provide information regarding each of these factors.

The Settlement was negotiated at arms-length. Although the parties did not negotiate through a mediator, Class Counsel has demonstrated that negotiations were adversarial.

The Settlement is within the ballpark of reasonableness. The parties negotiated a settlement in the amount of \$150,000. Class Counsel has presented detailed liability and damages estimates based on their evaluation of the records received through informal discovery and discounted their estimates based on the risks inherent to class action litigation and specific defenses set forth by defendant. Settling now for a lesser amount than might be received at trial is reasonable given those risks, the cost of going forward, and the time value of money.

There has been sufficient investigation and discovery, and Class Counsel is experienced in similar litigation. Class Counsel received relevant documents from defendant including a 30% sample of class member payroll and timekeeping records, defendant's written employment policies, and information regarding the class size. Mr. Moon of Moon Law Group, PC provides information as to his and his colleagues' experience in class action litigation. (Moon Decl., ¶¶ 50-73.)

The allocation of the Settlement between the class and PAGA claims is fair and reasonable. (*Nordstrom Com. Cases* (2010) 186 Cal.App.4th 576, 589 [finding no abuse of discretion to allocate nothing to PAGA in a PAGA/class settlement].) Further, plaintiff provided notice to the LWDA as required by Labor Code, section 2699.3, subdivision (a)(1)(A). (See MPA, at p. 2:23-27.) The LWDA has not objected to the Settlement. (See Moon Decl., ¶ 11, exh. 3.)

Plaintiff has provided information as to the following elements of class certification:

- **Numerosity/Ascertainability:** Plaintiff defines the class according to objective criteria, and the class members' identities are available from defendant's records. The class consists of approximately 320 individuals, making joinder impracticable.
- **Commonality:** Common issues predominate over whether defendant violated wage and hour laws.
- **Superiority:** The superiority requirement is satisfied based on the benefits and efficiencies of this proposed Settlement when compared to continued litigation of the case on either a class basis or through multiple individual lawsuits.
- **Typicality:** Plaintiff represents that his claims are the same as those of the class members he seeks to represent.

- **Adequacy of Representation:** Plaintiff has demonstrated that his counsel is adequate to represent the class. Plaintiff has also demonstrated through his declaration that he understood and complied with the responsibilities of serving as class representative.

Based on Class Counsel's representations, the court finds that plaintiff has demonstrated that certification of the class for this settlement is appropriate.

The contents of the settlement notice are substantively adequate. (Cal. Rules of Court, rule 3.769(f); *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 694.) The method of notice — first class mail — is sufficient to provide actual notice. (*City of San Diego v. Haas* (2012) 207 Cal.App.4th 472, 502; *Chavez v. Netflix, Inc.* (2008) 162 Cal.App.4th 43, 57; *Wershba, supra*, 91 Cal.App.4th at p. 251.)

ILYM Group, Inc. is a qualified settlement administrator and the court approves its retention, as well as the allocation of up to \$8,000 for its services.

The court will award plaintiff up to \$5,000 as a service award, based on his declaration, including the description of his contribution to the case, the absence of any repercussions or consequences from serving as class representative, and the average class member/aggrieved employee award.

The court will decide on attorneys' fees and costs, and the service award, at a hearing based upon a noticed motion, which will be heard on the same date as the hearing on final approval. Class Counsel is to submit evidence supporting each of these requests.

For the attorneys' fees award, counsel shall provide sufficient evidence so that the court can perform a lodestar cross-check, including either billing records or comparable evidence, including identifying which attorneys or support staff worked on each task, support for the hourly rate as reasonable in San Mateo County, and evidence, if any, supporting an award of a multiplier. The costs must be sufficiently identified so that the court can determine their reasonableness.

For the service award, the class representative must submit a declaration with specific facts regarding his contributions; general statements are insufficient. (*Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 805.) If the named plaintiff has any specific claims that are consideration for a general release or if has experienced specific reputational harm, plaintiff must identify these items for the court.

Some of this information has already been provided but should also be provided in the motion for attorneys' fees, costs, and service award.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and

JULY 22, 2026 LAW AND MOTION CALENDAR
Judge NICOLE S. HEALY, DEPARTMENT 28

provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

JULY 22, 2026 LAW AND MOTION CALENDAR
Judge NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 10**

25-CIV-05067

STEPHEN NEVILLE, ET AL. VS. CITY OF BURLINGAME, ET AL.

STEPHEN NEVILLE
CITY OF BURLINGAME

ERIN R. EZRA
MARIA NOZZOLINO

Application of Steve Kantor to Appear Pro Hac Vice

TENTATIVE RULING:

The unopposed application of Steve Kantor to appear pro hac vice on behalf of plaintiffs is **DENIED without prejudice**. Counsel has not provided proof that the verified application and notice of hearing were served on the State Bar in compliance with California Rules of Court, rule 9.40(c). In addition, the proof of service indicates defendants were served with the application and notice of hearing on the same date they were filed. However, the hearing date was changed at the time of filing. To date, the court's record does not reflect filing and service of an amended notice.

JULY 22, 2026 LAW AND MOTION CALENDAR
Judge NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 11**

25-CIV-08271

KIRSTEN BOLLEN ARPAJIAN VS. SCOTT LOEWEN ARPAJIAN

KIRSTEN BOLLEN ARPAJIAN
SCOTT LOEWEN ARPAJIAN

ETHAN M. WEISINGER
LUIS M. MONTES

Respondent's Motion to Quash Deposition Subpoena for Production of Business Records to Non-Party Fidelity Brokerage Services, LLC

TENTATIVE RULING:

This hearing is **MOOT** in light of the parties' stipulation entered on July 20, 2026.

JULY 22, 2026 LAW AND MOTION CALENDAR
Judge NICOLE S. HEALY, DEPARTMENT 28

02:00 PM LINE 12

25-CLJ-06986

WELLS FARGO BANK, N.A. VS. RENALIN SALVADICO

WELLS FARGO BANK, N.A.
RENALIN SALVADICO

JON O. BLANDA
PRO SE

Plaintiff's Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted

TENTATIVE RULING:

The unopposed motion is **DENIED without prejudice** for lack of sufficient proof that defendant was given notice of the hearing date. The proof of service indicates the moving papers were served on defendant by mail on February 26, 2026, the same day the motion was filed. At the time of filing, the hearing date was changed from July 1, 2026, to July 22, 2026. It is unclear whether the notice served was the original or amended version. To date, the court's record does not reflect the filing and service of an amended notice.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 3:00 PM